



HACKERS INFOTECH

360° Cyber defence for Digital landscape

An ISO 9001:2015 Certified Company

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

This Non-Disclosure and Confidentiality Agreement is entered between the company and the Employee (referred to as the “Recipient”). The Company and the Recipient may hereinafter be collectively referred to as the “Parties” and individually as a “Party.”

1. Purpose

The Company agrees to disclose certain confidential, proprietary, and sensitive information to the Recipient in connection with their employment/engagement with the Company. This Agreement ensures such information and assets are protected against unauthorized disclosure, misuse, or illegal activity.

2. Definition of Confidential Information

For the purpose of this Agreement, “Confidential Information” shall include, but shall not be limited to, any non-public information disclosed verbally, visually, electronically, digitally, physically, or in written form by the Company or its clients.

Confidential Information includes:

Business & Operational Information

- Business plans, operational strategies, commercial information, roadmaps, pricing structures, sales data, market analysis, financial records, and internal business processes.
- Vendor relationships, partnership information, contracts, proposals, and procurement details.
- Internal policies, operational procedures, workflows, and organizational structure.

Technical & Development Information

- Source code, software applications, APIs, repositories, databases, cloud architecture, deployment configurations, technical documentation, development environments, AI/ML models, scripts, automation workflows, prototypes, algorithms, research materials, and engineering processes.



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- Product designs, infrastructure architecture, system diagrams, DevOps configurations, CI/CD pipelines, testing methodologies, and internal development frameworks.

Client Information

- Client names, business information, employee details, infrastructure data, cloud environments, network diagrams, IP addresses, domains, applications, reports, security findings, contracts, communications, and assessment results.
- Client credentials, access mechanisms, authentication methods, privileged account details, and environment configurations.

Cybersecurity-Specific Information

- Vulnerability findings, penetration testing reports, attack vectors, exploit paths, threat intelligence, malware analysis, reconnaissance findings, ASM data, detection rules, incident response procedures, forensic evidence, SIEM configurations, security logs, firewall configurations, cloud security information, and internal cybersecurity methodologies.
- Security weaknesses, proof-of-concept exploits, red team operations, blue team strategies, security automation scripts, and remediation procedures.

Company Assets

Confidential Information also includes Company-owned or Company-provided assets such as:

- Official email accounts
- Laptops and mobile devices
- VPN access and cloud systems
- Licensed software and subscriptions
- Internal communication platforms
- Servers, storage systems, and databases
- Security tools and monitoring platforms
- Access cards, authentication devices, MFA tokens, and credentials



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The Recipient acknowledges that all Confidential Information remains the exclusive property of the Company and/or its clients.

3. Exclusions

This Agreement shall not apply to information which the Recipient can clearly demonstrate:

- Was lawfully and rightfully known prior to disclosure by the Company;
- Is publicly available through lawful means without breach of this Agreement;
- Was independently developed without use of or reference to the Company's Confidential Information;
- Is required to be disclosed under applicable law, court order, or governmental directive, provided that the Recipient gives prior written notice to the Company wherever legally permissible.

The burden of proving the applicability of any exclusion shall remain with the Recipient.

4. Recipient's Obligations

The Recipient agrees and undertakes that they shall:

- Maintain strict confidentiality of all Company and client information at all times.
- Use Confidential Information solely for authorized business purposes related to their role within the Company.
- Not disclose, reproduce, copy, transfer, publish, distribute, or communicate Confidential Information to any unauthorized individual, organization, or third party.
- Exercise reasonable and industry-standard security measures to safeguard all information, systems, credentials, and Company assets.
- Follow all Company cybersecurity policies, access control policies, operational procedures, and compliance requirements.
- Prevent unauthorized access, misuse, or leakage of Company or client information.
- Immediately report any actual or suspected security incident, data breach, credential compromise, unauthorized disclosure, or misuse of Company property.



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- Not retain copies of confidential information after termination of employment or engagement.
- Avoid discussing confidential matters in public spaces, unsecured communication channels, or unauthorized environments.

5. Cybersecurity, Authorized Security Testing & Data Protection

Considering the nature of the Company's operations, the Recipient acknowledges that they may have access to sensitive cybersecurity information, infrastructure details, security findings, privileged systems, and client environments.

The Recipient agrees that:

- Any security testing, penetration testing, vulnerability scanning, reconnaissance activity, exploit validation, phishing simulation, credential testing, or security assessment shall be conducted strictly within authorized scope approved by the Company.
- Unauthorized scanning, exploitation, probing, brute-force attempts, malware execution, privilege escalation, credential misuse, or access attempts against systems not explicitly authorized by the Company are strictly prohibited.
- Security tools, scripts, automation frameworks, vulnerability scanners, packet analyzers, exploitation frameworks, OSINT tools, or offensive security utilities provided by the Company shall only be used for legitimate Company-authorized activities.
- Vulnerabilities, attack vectors, exploit paths, security findings, infrastructure details, and client security information shall not be disclosed publicly or shared with unauthorized individuals.
- The Recipient shall not use Company infrastructure, client infrastructure, or security tools for personal bug bounty activities, unauthorized research, cryptocurrency mining, external consulting, or any illegal activity.
- Company or client data shall not be uploaded to public AI tools, external repositories, personal cloud storage, personal devices, or unauthorized third-party platforms without written approval.



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The Recipient acknowledges that any unauthorized disclosure or misuse of cybersecurity-related information may lead to severe legal consequences and financial liability.

6. Access Control & Credential Security

The Recipient agrees to maintain strict confidentiality and security of all access credentials, including but not limited to passwords, API keys, VPN credentials, SSH keys, MFA devices, certificates, access tokens, cloud credentials, and privileged account information.

The Recipient shall:

- Use only Company-authorized accounts and access mechanisms.
- Never share credentials with unauthorized persons.
- Immediately report any suspected credential compromise or unauthorized access.
- Follow least-privilege access principles.
- Avoid bypassing security controls, monitoring systems, or authentication mechanisms.
- Log out of systems appropriately and ensure secure handling of Company devices and accounts.

The Recipient shall be fully responsible for activities performed using their assigned credentials unless compromise is reported immediately to the Company.

The Recipient shall:

- Maintain strict confidentiality of passwords, API keys, SSH keys, certificates, tokens, VPN credentials, and MFA devices.
- Never share credentials with unauthorized individuals.
- Use only assigned accounts and systems.
- Immediately report credential exposure or compromise.
- Follow least-privilege access principles.



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7. Data Leakage and Misuse

- Any intentional or negligent leakage of data, trade secrets, or intellectual property will be treated as a serious breach.
- Misuse of Company assets (tools, emails, devices, communication platforms) for personal projects, fraud, harassment, or unauthorized third-party work is strictly prohibited.
- The Company reserves the right to take disciplinary action, which may include termination, legal proceedings, and financial recovery of damages.

8. Return of Materials

Upon termination of employment/engagement or upon the Company's request, the Recipient shall immediately return all Company assets, records, files, laptops, and any material containing Confidential Information, without retaining any copies.

9. Ownership of Work

All work, inventions, source code, documents, and intellectual property created by the Recipient during their engagement with the Company shall be the sole property of the Company.

10. Duration

The obligations of confidentiality shall remain in effect during the term of engagement and for five (5) years thereafter, regardless of the reason for termination.

11. Legal Remedies

- The Recipient acknowledges that breach of this Agreement would cause irreparable harm to the Company.
- The Company shall be entitled to seek injunctive relief, damages, and legal costs in addition to termination of services.
- Any illegal activity, including theft, hacking, or unauthorized distribution of Company data, shall be reported to law enforcement authorities



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12. DATA PROTECTION & PRIVACY

The Recipient agrees to:

- Handle personal and client data responsibly.
- Follow applicable privacy and data protection laws.
- Avoid transferring data outside approved environments.
- Avoid uploading Company or client data to public AI platforms, repositories, or unauthorized cloud services.
- Use encryption and secure communication practices where applicable.

13. MONITORING & AUDIT CONSENT

The Recipient agrees to:

- Company systems, emails, devices, networks, cloud platforms, VPNs, and communication systems may be monitored, logged, audited, and reviewed.
- Security logs and activity records may be retained for operational, compliance, and legal purposes.
- Monitoring may include access logs, system activity, internet usage, and communication records.

14. Governing Law & Jurisdiction

This Agreement shall be governed by the Indian law. Any disputes shall be subject to the courts

15. Miscellaneous

- This Agreement constitutes the entire understanding between the Parties regarding confidentiality and supersedes all prior agreements.
- If any provision is found unenforceable, the remaining provisions shall continue in full force.
- No amendment shall be valid unless in writing and signed by both Parties.



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16. Misuse of Company Assets and Data Protection

The Recipient acknowledges that all assets, equipment, tools, software, email accounts, digital platforms, and other resources provided by the Company are the sole property of the Company and are to be used strictly for authorized business purposes only.

17. Non-Compete

The Recipient agrees that during the course of their engagement with the Company and for a period of [6 / 12 / 24 months] after termination of such engagement, regardless of the reason for termination, they shall not, without the prior written consent of the Company:

- **Direct Competition:** Engage, directly or indirectly, in any business, employment, or service that is in direct competition with the business of the Company within [geographical scope, e.g., India/Global/within 200 km].
- **Clients & Partners:** Solicit, approach, or accept business from any client, customer, or business partner of the Company with whom the Recipient had material dealings during their engagement.
- **Employees:** Induce, solicit, or attempt to hire any employee, consultant, or contractor of the Company to leave the Company or join any competing entity.

Company

Applicant

Signature: _____

Signature: _____

Name: _____

Name: _____

Designation: _____

Designation: _____

Date: _____

Date: _____